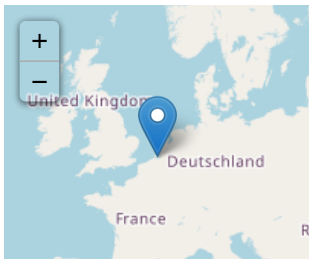
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Multilateral Negotiations over the Scheldt River Estuary: Transforming Centuries of Deadlock into Productive Multiparty Negotiations?

Case Description



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Geolocation:	51° 25' 4.98" N, 3° 39' 30.41" E
Total Population:	million
Total Area:	km^2
Climate Descriptors:	temperate
Predominent Land Use Descriptors:	agricultural- cropland and pasture, industrial use, urban- high density
Important Uses of Water:	Agriculture or Irrigation,Domestic/Urban Supply,Industry - non-consumptive use,Other Ecological Services

Summary

The Scheldt River rises in France, flows through the three regions of Belgium—Wallonia, Brussels Capital, and Flanders—and empties into the North Sea in the Netherlands. While the entire region, and especially the waterways and strategic sea access that the Scheldt River provides, have been a source of conflict and tension in the region for centuries, this case will focus primarily on negotiations over the Western Scheldt Estuary specifically, beginning in the 1960s at the start of a period of more productive relations among the neighboring parties, and describe and later analyze the interactions between them through the early 2000s. Information about the Basin is provided to give context to this analysis.

Negotiations over water resources, ecology and nature preservation, and transit/sea access issues, among others, were conducted over more than 40 years (some are ongoing), principally between the Netherlands and Belgium, with other stakeholders involved to varying degrees at different points. Adding layers of complexity to these negotiations were the federalization process occurring in Belgium, which changed the stakeholders who had a seat at the table mid-way through negotiations, and the evolving requirements governing water resource management and ecosystem conservation, stemming from the European Water Framework Directive and from regulations from the European Commission such as the Habitats and Birds Directives (European Commission, n.d.)[1] and from the UN Economic Commission for Europe.

Natural, Historic, Economic, Regional, and Political Framework

Background

History

The Scheldt Basin has been characterized by centuries of conflict and contention, especially over the use of its waterways and sea access. The estuary itself and the ports to which it provided sea access were both a hub of activity during the Roman, Spanish, and French empires, and access through the estuary was often contested and sometimes restricted as a tactical blow in transboundary conflicts in the area. The latter half of the 20th century saw the decline of what had been largely "hostile, securitized relations" (Warner and van Buuren 2009)[2] and began a period of more productive, if still conflictual, relations among the neighboring parties.

Geography

The total surface Scheldt River Basin is 22,116 km²; the surface of the Scheldt River Basin District (which includes other minor river basins) is 36,416 km² (International Scheldt Commission)[3]. The Scheldt River rises in the Saint-Quentin plateau of France and travels through the Belgian regions of Wallonia, Brussels Capital, and Flanders, and empties into the North Sea in the Netherlands through the Western Scheldt Estuary (other branches of the river have been dammed.) It is 350 km long, including a large 160 km-long estuary, which at its mouth in the Netherlands is 5 km wide. This estuary provides the only sea access for Port of Antwerp, which is one of Europe's largest ports. Many human-made channels, built to improve navigation in the Scheldt and to connect it to neighboring bodies of water, crisscross the basin. The estuary has been deepened several times over the years to accommodate larger ships transit to and from the Antwerp Port.

Ecology

The Western Scheldt's wide and long estuary gives rise to some uncommon ecological characteristics. It has a gradual transition from fresh to saltwater, contains a large freshwater tidal area, and a 35-km2 brackish tidal area—the largest in all of Europe (Commission Internationale de l'Escaut International Scheldencommissie and Scaldit[4]). Its ecology provides a home for unique flora and fauna, and is a wintering area for large populations of migratory birds (Warner and van Buuren 2009)[5]. The Scheldt's annual discharge is approximately 10 million m3, but because of the effects of the tide, about 1 billion m3 enters and exits the estuary daily (International Scheldt Commission)[6].

13% of the Scheldt district area is highly urbanized and built-up. 61% of the total area is devoted to agriculture (Commission Internationale de l'Escaut International Scheldencommissie and Scaldit)[7].

Economic and Political Factors

The area of the Scheldt basin is densely populated, containing 12.8 million inhabitants. At 353 inhabitants/km2, it is about three times as densely populated as the European average. Over 40% of that total population is in the Flemish region, 35% in France, less than 10% each in the Brussels Capital Region and Wallonia, and finally, 4% in the Netherlands (ibid)[8].

The basin is highly industrialized. The most common industries are food and metallurgy, but the chemical and textile sectors are also major players. As noted above, the majority of the land use in the basin is devoted to agriculture—mostly livestock farming in the north, and crop farming in the south. Additionally, industry includes significant tourism activities all along the basin, but especially in the more built-up Flemish region.

Governance Context

During the course of the most intensive negotiations between Belgium and the Netherlands (which will be outlined in detail below), the Belgian government was undergoing a significant federalization reform, which transferred incrementally more autonomy and governing powers to the regions of Belgium (Portal Belgian Government, n.d.)[9]. The most significant milestone of these reforms occurred in 1992-1993, at which point certain treaty-making authorities were transferred directly to the governments of the regions of Belgium, which allowed them to broker deals directly with other states—in this case, the Netherlands (Meijerink 1999)[10].

There was also tension between the national and provincial levels of government in the Netherlands: The province of Zeeland, whose territory is divided by and contains most of the two branches of the Scheldt Estuary, had in 1953 experienced a sea flood which killed approximately 2000 people in the province. After that point, a network of dykes and dams were constructed to protect Zeeland against even extreme flooding, and the concept of breaching those protections intentionally was regarded as culturally unacceptable in the region. Zeeland was therefore quite wary of returning agricultural land to the sea/estuary through flooding to "make space for the river", an element of Dutch flood management that was incorporated into the deepening negotiations.

Issues and Stakeholders

Major stakeholders in the Western Scheldt Estuary negotiations:

- The Netherlands
- Zeeland (province of the Netherlands)
- Belgium
- Flanders (region of Belgium)
- Brussels Capital (region of Belgium)
- Walloon (region of Belgium)
- France
- Environmental NGOs and groups
- Agricultural industry and farmers

Main stakeholders' primary interests in negotiations in the Estuary:

Interests:	Parties:
Increased access for transit of cargo ships to and from Port of Antwerp (including deepening of Western Scheldt channels, improving navigability of Western Scheldt by reducing tight bends, and construction of additional channels to access sea via Scheldt)	Belgium, especially region of Flanders
Improvement and management of water quality in Scheldt River, including reduction of sediment pollution and water contamination	Netherlands, Environmental NGOs, (European Commission)
Estuarine rehabilitation; nature restoration (including maintaining environment to European Commission standards)	Netherlands, Environmental NGOs, (European Commission)
Regional autonomy and avoidance of infrastructural burdens	Belgian regions, especially Wallonia
Water quality and guaranteed flows from the Meuse River (major drinking water source for the Netherlands) (added as part of a negotiating package)	Netherlands
Preservation of land in Zeeland from being intentionally flooded and submerged into estuary	Zeeland, agriculture industry, farmers in Zeeland
Construction of a high-speed rail project between Antwerp and Amsterdam (added as part of a negotiating package)	Netherlands

Timeline of Conflict and Phases of Negotiation

Between 1967 and 1997 alone, 14 rounds of contentious negotiation took place, primarily on two broad issues of international significance: 1) sea access for the Antwerp port, and 2) water, particularly its quantity and quality, as well as sediment pollution issues. The following timeline outlines key events in the negotiations during this period and in the negotiating developments in the years immediately afterward.

Year	Events
1967	Belgium proposes the initiation of negotiations with Netherlands over several development projects to improve transit access for Antwerp Port: ▪ Construction of Baalhoek and Bath canals (on Dutch territory) to improve access from Antwerp harbors to the Western Scheldt The Dutch are disincentivized to cooperate due to the risk of decreased competitiveness of their Rotterdam Port resulting from improved sea access for Antwerp Port. The Dutch link Belgium's request to their own request of improved quantity and quality of flow from Meuse River, and improvement of water quality in the Scheldt. The two parties negotiate on these terms.
1970-1975	Major dredging takes place in the estuary.
1975	The Belgian-Dutch Water Convention is drafted and includes agreements on all five issues under negotiation (including construction of canals, and increases in water quantity and quality from Meuse and Scheldt Rivers.) At eleventh hour, Wallonia blocks the draft Water Convention agreement (the Belgian federalization is at that time in process, thus transferring more power to regions), due to an unfavorable cost-benefit calculus: ▪ Walloon would garner little benefit from agreement, as the increased access to Antwerp Port is more of a benefit to Brussels Capital and especially Flanders. ▪ As an upstream party, Walloon would bear heavy responsibility for remediation of both rivers. It would also be responsible for holding and developing water storage reservoirs and infrastructure to guarantee minimum flows to the Netherlands from the Meuse River. ▪ Walloon is concerned over loss of autonomy on Meuse River issues, and asks to bring France into negotiations. Beginning of 10-year deadlock on negotiations
1985	Belgium and the Netherlands attempt to restart negotiations: ▪ Belgium introduces the issue of deepening the Western Scheldt according to the "48'/43'/38' deepening programme" to further improve access for large cargo ships traveling to and from Antwerp port ▪ Walloon raises the same objections it had previously about the distribution of burdens and benefits, and Belgium and the Netherlands agree to modify the draft convention
1987	Walloon opposes the composition of the newly reinstated negotiation commission, citing a lack of direct representation of the regional governments of Belgium. ▪ Belgium allows representatives of regions to join the commission, and replaces the head of the commission. ▪ Negotiations stall over disagreements on the extent of water quality policies that the parties will adopt under the agreements.
1992	Driven by two developments in the governance structures of the basin, the Dutch reopen the negotiations: ▪ During this time, the parties sign the UN-ECE Convention on the Protection and Use of Transboundary Watercourses and International Lakes, which requires cooperation among all basin states in international river negotiations. As a result, France is brought into negotiations. ▪ The latest phase of federalization in Belgium is completed, and one outcome is that Belgian regions are now given authority to negotiate and enter into treaties directly.
1993	As a result of these two developments, bilateral and multilateral negotiations are initiated simultaneously: ▪ Multilateral negotiations over water quality issues for both Scheldt and Meuse Rivers between France, Netherlands, Wallonia, Brussels Capital, and Flanders ▪ Bilateral negotiations between the Netherlands and Flanders over the "48'/43/38' deepening programme" and the quantity of flows from the Meuse reaching the Netherlands. These negotiations include linking the issue of the construction of a high-speed rail project between Antwerp and Amsterdam, which is of interest to the Netherlands (as well as to Flanders, Brussels region, and France, who have an indirect interest in improving linkages between Amsterdam and the southern areas of the High Speed Rail system.) Though the Netherlands and Flanders come to agreement over the deepening of the Scheldt and the quantity of guaranteed flows from the Meuse, the high-speed rail, which Flanders had included as an incentive to get the Netherlands to the table, turns out to be a sticking point. The Dutch will not sign the agreement without a plan for the rail project. The Netherlands, France, Walloon and Brussels Capital agree to the multilateral water quality convention, but Flanders makes its signing of the agreement contingent on a bilateral deal on deepening with Netherlands. Therefore, both agreements are stalled.
1994	Flanders and the Netherlands are able to reach an agreement on decision-making procedures for the development of the high-speed rail project. They sign the bilateral convention on the deepening of the Western Scheldt. With the bilateral treaty out of the way, Flanders signs the multilateral water quality conventions, thus concluding more than 25 years of negotiations over these issues.
1995-1997	Implementation: The International Commission for the Protection of the Scheldt (ICPS), the body charged with enacting the water quality conventions, is installed. The first Scheldt Action Program (SAP) is negotiated.

	Implementation of the deepening programme for the Western Scheldt is initiated. Dredging begins in June. A plan is developed to compensate for "nature losses" incurred because of that implementation. An expert commission to advise on this compensation plan is formed. The Dutch invoke lex specialis to expedite the approval process of the deepening programme. Stakeholders in the Netherlands, including environmental advocates and the province of Zeeland are resistant to the implementation of the plan. The former are concerned about ecological costs as a result of the deepening; the latter resist the concept of intentionally returning land in the estuary to the sea, which is required as part of the development plan.
1998	The Flemish initiate a new round of negotiations with the Dutch to request further deepening of the Western Scheldt ▪ The Dutch link new issues with the high-speed rail project (including timing and frequency of trains) to the negotiations
1999	Dutch and Belgian Prime Ministers Kok and Verhofstadt sign a treaty based on the 1995 agreements to deepen the estuary further. The Hzeren Rijn train line is packaged with this deal. However, when the treaty comes to the Dutch parliament in 200, it faces massive opposition and does not move forward.
2001	The ministers negotiating over the increased deepening decide to incorporate this round into the development of a Long-Term Vision of the Scheldt Estuary 2030, which is created in 2001.
2005	A further deepening agreement between The Netherlands and Flanders is reached.

Creation of the Long-Term Vision of the Scheldt Estuary in 2030:

The creation of the Long-Term Vision of the Scheldt Estuary in 2030 and the institution of a standing structure to mediate negotiation on water issues in the basin marked a departure from the previous decades of ad-hoc requests for negotiations among the parties. The plan included five main goals (Warner and van Buuren 2009)[11]:

1. Improve access to channel of Antwerp
2. Restore ecology of estuary
3. Guard against floods
4. Preserve physical-system characteristics of estuary
5. Conduct decision-making on Scheldt through mutual cooperation

The permanent bilateral Technical Committee on the Scheldt organized the project. The Secretariat of Benelux (a union between Belgium, the Netherlands, and Luxembourg), a respected neutral actor, provided a secretary for the main governmental stakeholders group, the Consultation Group (OAP). A joint fact-finding research plan explicitly made space for expert working groups and non-official stakeholders to participate, and included a process for conducting environmental impact assessments and social impact assessments. While the plan did not determine an order in which the named priorities are treated, it did set conditions for how future negotiations on these issues would be conducted. The first Development Plan for 2010 was developed between 2003 and 2006. Under this Long-Term Vision plan, an additional deepening of the Western Scheldt was negotiated and implemented in 2010, after an initial provisional agreement that had been reached in 2007 was debated and rejected by local stakeholders, including environmental organizations and farmers in Zeeland.

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